

Minnesota's Informed Choice Policy

Background

Minnesota's experiences implementing its Employment First policy and community living policy over the past decade led the self-advocacy community to partner with Minnesota's legislature to create a stronger informed choice policy. This informed choice policy states that Minnesotans accessing Medicaid Home and Community-Based Services (HCBS) are guaranteed those services using informed choice and informed decision-making.

What's Important

Minnesota delegates HCBS waiver administration to the county level. The informed choice policy has been written to address inconsistencies in how services were administered across Minnesota's 87 counties. The policy presumes that everyone can make their own decisions if they have the correct information that is accessible and understandable. People must have all the information about available options so they may review all their options before making decisions based on their needs, strengths and goals, likes and dislikes, cultural identity, and life experiences. As Sara Beauchene, the informed choice policy advisor says: "The focus is on independence for people with disabilities, ensuring service planning is firmly grounded in providing options that support independence, autonomy and quality of life."

While informed choice applies to **all** services and supports, the statute highlights four areas that the policymakers specifically identified as supporting and promoting the most independence and autonomy for people:

1. Employment & Benefits Planning
2. Community and Independent Living
3. Self-Direction
4. Assistive Technology

"These are not new concepts but codifying them in statute has given Minnesota a good basis to improve and to keep improving. Having this in statute holds us accountable in a different way to support people with intellectual and developmental disabilities by emphasizing that we learn how people process and understand information, learn how people make choices..."

Counties across Minnesota must provide services that address these four areas at least annually and as needed.

The policy also identifies a list of considerations framing the informed decision-making process:

- » Reasonable accommodations
- » Preferences
- » Abilities
- » Goals and objectives
- » Identification of people's cultural needs
- » Access to culturally responsive services and providers
- » Benefits of inclusive and individualized services and supports
- » Documentation of each service option explored
- » Development of a transition plan when needed
- » Awareness of barriers to making an informed choice
- » Ample time to consider all options before making a choice or changing one's mind

Minnesota requires HCBS disability waiver case managers to be trained in both employment planning and informed choice. All new case managers are required to complete the "Getting to Work" training, developed in partnership with

the State Employment Leadership Network (SELN), within the first six months of their employment. Case managers are required to take the other training, “Informed Choice for Disability Waiver Case Managers”, annually. This training includes modules on informed choice in all areas, including employment and benefits planning. This training also ensures that case managers build familiarity with the principle that informed individuals can make the right decisions for themselves, with or without support.

Minnesota has also developed guidance related to informed choice for members of Tribal Nations. Minnesota recognizes Tribal sovereignty and Tribal members’ choice to receive services from their Tribal governments. Tribal governments in Minnesota often provide HCBS, administer waiver programs, or provide other supportive services. Minnesota requires county and private waiver case managers who support people affiliated with Tribal Nations to directly coordinate with identified Tribal Nations to ensure informed choice.

“These are not new concepts but codifying them in statute has given Minnesota a good basis to improve and to keep improving,” says Sara Beauchene.

“Having this in statute holds us accountable in a different way to support people with intellectual and developmental disabilities by emphasizing that we learn how people process

and understand information, learn how people make choices—allowing time and honoring people’s learning time, honoring people’s right to change their minds and learn from their experiences, and supporting people’s self-determination skills.”

Questions to Consider:

- » What are some of the most common service delivery choices for different population groups in your state? How informed do you think these choices are in your system’s current approach?
- » How could changes to your state’s informed choice approach help address service gaps in your state?
- » Is it possible to have all the information needed to make the best decision about services and service providers? What more can be done to improve the likelihood that individuals and families could make informed decisions?

Disclaimer:

These practices are shared to inspire learning and conversation across states. They reflect local innovation in progress—not finished models or endorsed practices. Our goal is to surface insights, ask better questions, and learn from each other’s journeys.



**State Employment
Leadership Network**

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The SELN is a place for states to connect, collaborate, and create cross-community support regarding pressing employment-related issues at state and federal levels for individuals with developmental disabilities.

The SELN was launched in 2006 as a joint program of the National Association of State Directors of Developmental Disabilities Services and the Institute for Community Inclusion at the University of Massachusetts Boston.

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